

SOTOMAYOR, J., dissenting

no man is free to flout the criminal law. The majority fails to recognize or grapple with the lack of historical evidence for its new immunity. With nothing on its side of the ledger, the most the majority can do is claim that the historical evidence is a wash. See *ante*, at 638–639. It claims that the Court previously has described the “relevant historical evidence on the question of Presidential immunity” as “‘fragmentary’” and not worthy of consideration. *Ante*, at 638 (quoting *Fitzgerald*, 457 U.S., at 752, n. 31). Yet the Court has described only the evidence regarding “the President’s immunity from damages liability” as “fragmentary.” *Fitzgerald*, 457 U.S., at 751–752, n. 31 (emphasis added). Moreover, far from dismissing that evidence as irrelevant, the *Fitzgerald* Court was careful to note that “[t]he best historical evidence clearly support[ed]” the immunity from damages liability that it recognized, and it relied in part on that historical evidence to overcome the lack of any textual basis for its immunity. *Id.*, at 752, n. 31. The majority ignores this reliance. It seems history matters to this Court only when it is convenient. See, e.g., *New York State Rifle & Pistol Assn., Inc. v. Bruen*, 597 U.S. 1 (2022); *Dobbs*, 597 U.S. 215.

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Our country’s history also points to an established understanding, shared by both Presidents and the Justice Department, that former Presidents are answerable to the criminal law for their official acts. Cf. *Chiafalo v. Washington*, 591 U.S. 578, 592–593 (2020) (“‘Long settled and established practice’ may have ‘great weight in a proper interpretation of constitutional provisions’” (quoting *The Pocket Veto Case*, 279 U.S. 655, 689 (1929))). Consider Watergate, for example. After the Watergate tapes revealed President Nixon’s misuse of official power to obstruct the Federal Bureau of Investigation’s investigation of the Watergate burglary, President Ford pardoned Nixon. Both Ford’s pardon and Nixon’s acceptance of the pardon necessarily “rested on the